SOFTWARE SALE AND SETUP AGREEMENT

Axion DMS – Dealer Management System

Sale of source code with one-time setup. Not a hosting or subscription service.

This Agreement is made on [date] (the "Effective Date") between:

(1) [SELLER FULL NAME / BUSINESS NAME], of [address], phone [number], email [email] (the "**Seller**"); and

(2) [CLIENT FULL NAME / BUSINESS NAME], of [address], phone [number], email [email] (the "**Client**").

In simple words

This summary is for easy reading. The full terms below are what count.

- You are buying a **copy of the software code** (Axion DMS) and a **one-time setup**. You are not buying hosting, a subscription or any ongoing service from us.
- Your app runs on **your own free accounts** (GitHub, Vercel, Supabase), created with **your email**. You own and control these accounts. We do not keep your passwords, and we do not host, store or see your business data.
- You are responsible for **keeping your email and accounts secure** and for **backing up your data**.
- GitHub, Vercel and Supabase are **separate companies**. We do not control them. We are not responsible for downtime, limits, price or rule changes, suspension or data loss on their platforms.
- We are responsible **only for the code we wrote**. For [30] days after handover we will try to fix bugs in the code, free of charge.
- Our total liability is **limited to the price you paid**.

1. Definitions

1.1 In this Agreement:

"**Software**" means the Axion DMS dealer management system web application, including its Source Code, database structure (tables and SQL scripts), configuration files and, if listed in Schedule A, the Android wrapper application.

"**Source Code**" means the human-readable code of the Software that the Seller delivers to the Client.

"**Setup Services**" means the one-time services described in Clause 3 and Schedule A.

"**Client Email**" means the email address that the Client provides and controls, used to register the Client Accounts.

"**Client Accounts**" means the GitHub, Vercel, Supabase and any other accounts created for the Client under Clause 4.

"**Third-Party Services**" means GitHub, Vercel, Supabase, the Client's email provider, and any other platform, hosting, database, email, domain, app-store or internet service that the Software or the Client Accounts depend on. The Seller does not provide any of them.

"**Client Data**" means all information entered into, stored by or produced through the Software by the Client, its staff or its customers.

"**Handover Date**" means the date recorded in Schedule A on which the Seller completes the Setup Services and hands over the deliverables.

2. What the Client Is Buying

2.1 The Seller sells to the Client, and the Client buys, a copy of the Software (including the Source Code) together with the Setup Services, for the Price stated in Clause 11.

2.2 **Licence.** Once the Price is paid in full, the Seller grants the Client a perpetual, non-exclusive, non-transferable licence to use and modify the Source Code for the Client's own internal business only ([one business / dealership and its branches]).

2.3 **This is a sale of code, not a service.** The Seller does not provide hosting, servers, database services, storage, email, internet access, uptime, backups, monitoring or any other continuing service. Once the Software is running in the Client Accounts, the Seller does not operate it or control it. The Seller charges no subscription or recurring fee unless the parties sign a separate written agreement.

2.4 The Seller does not store, keep, process or have access to Client Data. The Seller is not the Client's host, data processor or service provider.

3. Setup and Handover

3.1 As a one-time service, the Seller will:

(a) help the Client create the Client Accounts using the Client Email;

(b) place the Source Code in a GitHub repository that belongs to the Client's GitHub account;

(c) create the database structure in the Client's own Supabase project;

(d) connect and deploy the Software through the Client's Vercel account;

(e) test that the Software works; and

(f) hand over the login details and the other items listed in Schedule A.

3.2 The Client will test the Software within [7] days after the Handover Date and report any problem in writing. Problems in the Source Code that are reported in time are handled under Clause 7.

3.3 The Seller will use reasonable efforts to finish the Setup Services within [number] days after receiving the first payment and the information it needs. Delays caused by the Client or by Third-Party Services extend this period.

4. Client Accounts, Email and Security

4.1 **Client Email.** The Client will provide a Client Email that it owns and controls. The Client Accounts are registered with it, and password resets and security messages for them arrive in that mailbox. The Client alone is responsible for keeping the Client Email and the Client Accounts secure. This includes strong and unique passwords, two-factor authentication, recovery options, and not sharing login details with anyone who should not have them.

4.2 **Ownership.** The Client Accounts belong to the Client. They are not the Seller's accounts, and the Seller does not own, manage or monitor them.

4.3 **Handover.** The Seller may use login details temporarily during setup. On the Handover Date the Seller will hand over all login details, will not keep any copy, and will have no further access. The Client must change all passwords immediately after handover and remove any access it gave to the Seller.

4.4 **Later support access.** The Seller will access a Client Account again only if the Client asks for support and grants temporary access, and only as far as needed for that support. The Client should remove that access when the work is done.

4.5 The Seller is not responsible for the loss, theft, misuse or compromise of the Client Email or any Client Account, for forgotten passwords, lost recovery access or lockouts, or for anything done by a person to whom the Client (or the Client's staff) gives access.

5. Data and Database

5.1 All Client Data is stored in the Client's own Supabase project. The Client owns its Client Data.

5.2 After the Handover Date the Seller has no access to Client Data. The Seller does not use, sell, share or keep it.

5.3 The Client alone is responsible for:

(a) the accuracy, legality and content of the Client Data;

(b) regular backups (for example by exporting the database). Free plans may not include automatic backups;

(c) creating and managing users, roles and permissions inside the Software;

(d) following the data protection, privacy, tax and record-keeping laws that apply to its business; and

(e) keeping its database project active, as the provider requires.

5.4 The Seller is not responsible for any loss, corruption, deletion, leak or unauthorised access to Client Data, whatever the cause.

6. Third-Party Services

6.1 The Software runs on Third-Party Services. They are independent companies with their own terms, prices, limits and policies. The Seller is not their partner, agent or reseller.

6.2 The Client understands and accepts that Third-Party Services, especially free plans, may: have usage limits (for example on storage, bandwidth, users, builds or database size); pause or delete inactive projects; go offline; change their features, limits, prices or terms; suspend or close accounts; or end their free plans.

6.3 The Seller has no control over, and makes no promise about, the availability, speed, security, continuity, price or terms of any Third-Party Service. The Seller is not responsible for any loss they cause, including downtime, data loss, suspension, or changes that stop the Software from working.

6.4 The Client must read and follow each provider's terms, including acceptable-use and fair-use rules, which may limit commercial use of a free plan. The Client alone chooses which plan to use. The Seller does not state that any free plan is allowed for, or suitable for, the Client's business. If a provider requires a paid plan, or the Client chooses to upgrade, the Client pays the provider directly.

6.5 If a change made by a Third-Party Service requires the Source Code to be changed, that work is not covered by Clause 7.2. The Seller may offer it as paid work.

7. Seller's Responsibility and Bug-Fix Support

7.1 The Seller is responsible only for the Source Code that it delivered.

7.2 **Bug-fix period.** For [30] days after the Handover Date (the "**Warranty Period**"), if the Client reports a reproducible defect in the Source Code in writing (by email or message to the Seller's contact in this Agreement), the Seller will use reasonable efforts to fix it free of charge.

7.3 The Seller cannot promise a particular response or repair time. The Seller does not promise that the Software will be error-free, run without interruption, or meet every need of the Client.

7.4 After the Warranty Period, fixes, updates, new features, customisation, training, migration and other support are available only under a separate written agreement, at [fee or rate], and at the Seller's choice.

7.5 **Exclusions.** The Seller is not responsible for problems caused by:

(a) Third-Party Services (Clause 6);

(b) changes to the Source Code, database or settings made by the Client or anyone other than the Seller;

(c) a compromised, lost or deleted Client Account or project, or lost credentials;

(d) wrong data entry, misuse, or use that breaks this Agreement;

(e) the Client's devices, browsers or internet connection;

(f) free-plan limits being exceeded; or

(g) events outside the Seller's reasonable control.

8. Disclaimer of Warranties

8.1 Except for what Clause 7 expressly states, the Software and the Setup Services are provided "as is". To the fullest extent the law allows, the Seller gives no other warranty, express or implied, including any warranty of merchantability, fitness for a particular purpose, accuracy, or uninterrupted or secure operation.

8.2 The Seller does not give tax, accounting or legal advice. The Client must check for itself the reports, calculations and records that the Software produces.

9. Limitation of Liability

9.1 To the fullest extent the law allows, the Seller is not liable for any indirect, incidental, special or consequential loss, or for any loss of profit, revenue, business, goodwill, data or opportunity, however it arises.

9.2 The Seller's total liability under or in connection with this Agreement, for all claims together, is limited to the amount of the Price that the Client has actually paid to the Seller.

9.3 Nothing in this Agreement limits liability that the law does not allow to be limited, such as liability for fraud or wilful misconduct.

9.4 The Client is solely responsible to its own customers, staff and authorities for how it uses the Software and its Client Data. The Client will compensate the Seller for any third-party claim, loss or cost that arises from the Client's business, its Client Data, or its breach of this Agreement or of a Third-Party Service's terms.

10. Ownership and Restrictions

10.1 The Seller keeps all ownership rights (including copyright) in the Software, the Source Code, and the name and logo "Axion DMS". The Client receives only the licence in Clause 2.2. The Seller may sell or license the same or similar software to others.

10.2 The Client may use the Software for its own business, modify it, keep backup copies, and run it in its own Client Accounts.

10.3 The Client may **not**: sell, resell, rent, sublicense, share, publish or give the Source Code or any copy of it to any third party (other than its own employees or contractors who need it for the Client's business and are bound to keep it confidential); use it for any other business or person; remove the Seller's copyright notices; claim to be its original author; or use the Software for any unlawful purpose.

10.4 Open-source and other third-party components inside the Software stay under their own licences.

11. Price and Payment

11.1 The price for the Software and the Setup Services is [amount and currency], paid once (the "**Price**"). Payment schedule: [for example, __% before work starts and the balance on the Handover Date].

11.2 Payment method: [bank transfer / mobile banking / cash]. The Seller will confirm receipt in writing.

11.3 The Seller charges no monthly or recurring fee. Any fee charged by a Third-Party Service is the Client's responsibility and is paid directly to that provider.

11.4 The Client bears any taxes or bank charges that apply to its payment, [unless included in the Price].

11.5 The Source Code is digital and cannot be returned, so the Price is non-refundable once setup has started, [unless the parties agree otherwise in writing].

11.6 The Seller may hold back the handover and support until the Price is paid in full. The licence in Clause 2.2 takes effect on full payment.

12. Client's Responsibilities

12.1 The Client will:

(a) give accurate information and reasonable cooperation during setup;

(b) keep the Client Email and Client Accounts secure and use two-factor authentication;

(c) back up its data regularly;

(d) watch the limits of its free plans and keep its accounts and projects active;

(e) follow the terms of every Third-Party Service and all applicable laws;

(f) control which staff have access to the Software and the Client Accounts; and

(g) report problems to the Seller promptly and in writing.

13. Confidentiality

13.1 The Client will keep the Source Code confidential.

13.2 The Seller will keep confidential any Client business information it sees during setup or support, will not copy or keep it, and will use it only for that work.

14. Term and Termination

14.1 This Agreement starts on the Effective Date. The licence in Clause 2.2 is perpetual unless it ends under this Clause.

14.2 The Seller may end the licence by written notice if the Client seriously breaches Clause 10 or does not pay the Price in full. The Client must then stop using the Software and delete all copies of the Source Code. No refund is due.

14.3 Clauses 4 to 6 and 8 to 10, 13 and 15 continue after this Agreement ends.

15. Governing Law and Disputes

15.1 This Agreement is governed by the laws of [country / jurisdiction].

15.2 If a dispute arises, the parties will first try in good faith to settle it by discussion within [30] days after one party gives written notice of it.

15.3 If it is not settled, the dispute will be decided by [the courts of _____ / arbitration in _____].

16. General

16.1 **Entire agreement.** This Agreement (with Schedule A) is the whole agreement between the parties about its subject and replaces earlier discussions, quotes and messages.

16.2 **Changes.** A change is valid only if it is in writing and both parties sign it or confirm it by email.

16.3 **Transfer.** The Client may not transfer this Agreement or the licence to anyone else. The Seller may transfer it to a successor to its business.

16.4 **Severability and waiver.** If any part of this Agreement is unenforceable, the rest stays in force. Not enforcing a right at once does not waive it.

16.5 **Relationship.** The parties are independent. Nothing here makes them partners, employer and employee, or agent and principal.

16.6 **Notices.** Notices may be sent by email or messaging app to the contact details on page 1.

16.7 **Language and signing.** This Agreement is in English. If a translation is provided, the English version prevails if they differ. It may be signed in counterparts and electronically.

17. Client's Acknowledgment

17.1 By signing, the Client confirms that it has read and understood this Agreement, and in particular that:

(a) it is buying code and a one-time setup, not a hosted service;

(b) the Client Accounts and Client Data are its own, and it is responsible for their security and backup;

(c) GitHub, Vercel and Supabase are third parties outside the Seller's control; and

(d) the Seller's responsibility is limited to fixing bugs in the code during the Warranty Period, and its liability is limited as stated in Clause 9.

Client's initials: _____

SIGNED by the parties:

For the Seller	**For the Client**
Signature: _____	Signature: _____
Name: _____	Name: _____
Designation: _____	Designation: _____
Date: _____	Date: _____

WITNESSES:

Witness 1	**Witness 2**
Name: _____	Name: _____
ID / NID no.: _____	ID / NID no.: _____
Signature: _____	Signature: _____

SCHEDULE A

Deliverables, Accounts and Handover Checklist

Part 1 – Deliverables

#	Item	Status
1	Axion DMS web application Source Code, in a GitHub repository in the Client's account	☐ Delivered
2	Database structure (tables and access rules) created in the Client's Supabase project	☐ Delivered
3	Live web link on Vercel: [https://_____.vercel.app]	☐ Delivered
4	First administrator login created inside the Software	☐ Delivered
5	Android app (APK) named "Axion DMS", if agreed	☐ Included ☐ Not included
6	Short walk-through of how to use the Software: [date / method]	☐ Done

Part 2 – Client Accounts

Service	Registered email / username	Created	Details handed over	Password changed by Client
Email (Client Email)	[email]	☐	☐	☐
GitHub	[username]	☐	☐	☐
Vercel	[username]	☐	☐	☐
Supabase	[project name]	☐	☐	☐
[Other]		☐	☐	☐

Part 3 – Handover confirmation

Handover Date: [date] Warranty Period ends on: [date]

☐ The Client confirms that it has received the items in Part 1 and the account details in Part 2.

☐ The Client confirms that it has changed all passwords and turned on two-factor authentication, and that it has removed any access it gave the Seller.

☐ The Seller confirms that it has deleted any copy of the Client's login details and keeps no access to the Client Accounts.

Seller

Signature: _____

Name: _____

Designation: _____

Date: _____

Client

Signature: _____

Name: _____

Designation: _____

Date: _____